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functionally equivalent to the products or services of the Owner. The parties' obligations under this section will survive the termination of this Agreement.

12. Subcontractor Warranties: Subcontractor warrants as follows:

a. All Services provided hereunder will be performed in accordance with the highest professional standards demanded by the Information Technology industry.

b. All Services and/or deliverables provided hereunder shall not infringe upon any patent, copyright and/or proprietary right of any third party.

c. Subcontractor is an Equal Opportunity Employer and does not discriminate in recruitment, hiring, transfer, promotion, compensation, development, referral, placement and termination of its employees on the basis of race, color, sex, age, marital status, national origin, handicap, religious beliefs, veteran's status or other protected category as required by applicable Federal, State and local laws.

d. Subcontractor will maintain adequate books and records sufficient to substantiate all invoices and related expenses and fees incurred by Subcontractor with respect to the Services hereunder for at three (3) years from the date of final payment.

13. Indemnification.

a. The subcontractor will be liable for any personal injury or tangible property damage caused by the acts or omissions of the Subcontractor, Subcontractor's Temporary Consultants, agents or employees. Subcontractors will indemnify, defend and hold Sierra Support Centre and Customer, their officers, directors, employees or agents (collectively "Indemnities") harmless from and against any and all claims, demands, causes of action, losses, expense (including attorneys' fees) or liability accruing or resulting from the acts or omissions of Subcontractor, Subcontractor's Temporary Consultants, agents or employees.

b. The subcontractor will indemnify and hold Sierra Support Centre and Customer harmless from and against any loss, cost, liability or expense (including attorneys' fees) arising out of any claim of infringement in breach of the warranty provided in paragraph 12 (b).

c. Subcontractor will indemnify and hold harmless Sierra Support Centre and Customer from any against any claim, demand, liability, damage or expense (including attorneys' fees) with respect to withholding taxes, workers' compensation, employee benefits or any other liability of any nature caused by or relating to the employment relationship between Subcontractor and Temporary Consultant supplied by Subcontractor hereunder.

14. Termination.

a. This Agreement and/or any Work Order issued hereunder will terminate upon the earlier of the expiration of the Term of Agreement or as follows: